

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X **Index No.** _____
JONATHAN GOMEZ, Purchased _____

Plaintiff

Plaintiff designates Bronx
County as the place of trial

- against -

The basis of the venue is
where the tort arose

**THE CITY OF NEW YORK,
DETECTIVE GEORGE COLON
(Shield # 002793),**

SUMMONS

Defendants.

-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: 3/1/22
New York, NY

_____/s/_____
MARTINDALE & ASSOCIATES, PLLC
By: Conway C. Martindale II
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, New York 10168
(212)405-2233

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

DETECTIVE GEORGE COLON

2120 Ryer Avenue

Bronx, NY 10457

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****JONATHAN GOMEZ****Plaintiff,****Index No.****Verified Complaint****- against -****THE CITY OF NEW YORK,
DETECTIVE GEORGE COLON (shield # 002793),****Defendants.**

Plaintiff JONATHAN GOMEZ, by his attorneys, MARTINDALE & ASSOCIATES, PLLC, by CONWAY C. MARTINDALE II, principal, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff JONATHAN GOMEZ was a resident of Westchester County in the State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK (“CITY”), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT (“POLICE”), was and is an agency of Defendant CITY.
4. At all times hereinafter mentioned, Defendant, DETECTIVE GEORGE COLON (shield # 002793) (“DET. COLON”), was and is a police officer employed by Defendants.

BACKGROUND

5. On April 12, 2017, at approximately 2:15 p.m., inside of the 41st Police Precinct located at 1035 Longwood Avenue in Bronx County, without just cause or provocation, defendants, including DET. COLON, handcuffed Plaintiff and intentionally and falsely accused Plaintiff of having committed the crime of Criminal Possession of a Weapon in the Second Degree and related charges.

6. On or about April 13, 2017, a criminal complaint was issued at the directive of Defendants, and a criminal action against Plaintiff was commenced.

7. Plaintiff remained in custody until he was released on or about April 21, 2017.

8. Plaintiff had to defend against false charges until the criminal matter was terminated in favor of Plaintiff on December 11, 2020.

PROCEDURAL POSTURE

9. Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

10. More than thirty days have elapsed since service of said notice and defendant CITY has failed to pay or adjust this claim.

11. A 50-H hearing has been held.

12. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.

13. Plaintiff has duly complied with all conditions precedent to the commencement of this

action.

FIRST CAUSE OF ACTION: MALICIOUS PROSECUTION

14. Paragraphs 1-13 are incorporated by reference as though fully set forth herein.

15. In arresting Plaintiff, the Defendants acted with malice. The Defendants lacked probable cause to arrest Plaintiff.

16. All charges pending against Plaintiff were dismissed and sealed upon the application of the District Attorney on December 11, 2020.

17. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty for approximately eight (8) days, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: New York, NY
March 1, 2022

Yours, etc.,

MARTINDALE & ASSOCIATES, PLLC

_____/s/_____

By: Conway C. Martindale II
Attorneys for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY 10017
(212)405-2233

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF BRONX

-----X
JONATHAN GOMEZ,

Index No.

Purchased: _____

Plaintiff

-against-

**CITY OF NEW YORK,
DETECTIVE GEORGE COLON (shield # 002793),**

Defendants

-----X

I, **CONWAY C. MARTINDALE II**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
March 1, 2022

_____/s/_____
CONWAY C. MARTINDALE II

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

Index No:

JONATHAN GOMEZ,

Plaintiff,

-against-

**THE CITY OF NEW YORK
DETECTIVE GEORGE COLON
(shield # 002793),**

Defendant.

SUMMONS & COMPLAINT

Martindale & Associates, PLLC
Attorneys for Plaintiff
295 Madison Avenue, 12th Floor
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**TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

DETECTIVE GEORGE COLON
2120 Ryer Avenue
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